

General Charter Sales Terms and Conditions

of ACM AIR CHARTER Luftfahrtgesellschaft mbH
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hereafter referred to as ACM

I. General Charter Sales Terms and Conditions

The following General Charter Sales Terms and Conditions of ACM define the conditions for any contractual relationship between ACM and its Customers (hereinafter "**Customer(s)**"). Any deviations thereof or contradictory terms shall only be valid if confirmed in writing by ACM.

"**Passenger(s)**" mean(s) in the following the person(s) who are on board the aircraft operated by ACM.

The General Charter Sales Terms and Conditions are applicable for agreements with consumers as well as with merchants, unless otherwise stated in the relevant provision.

1. Conclusion of contract

Bookings and any notice required to be given under a Charter Agreement shall be in writing and shall be deemed duly given if left at or sent by post, facsimile message or email to the address herein stated of the party to whom it is to be given.

After a booking has been made, ACM will send a written confirmation to the Customer. The Customer shall countersign this confirmation personally, via e-mail or fax at the latest 24 hours after the booking is confirmed by ACM to confirm the acceptance of the offer, otherwise the booking will be cancelled.

2. Scope of contract

The subject of the contractual agreement is the transport of passengers and/or goods from the agreed departure point to the agreed destination point as stated in the charter contract.

ACM reserves the right to utilize any empty capacity of the aircraft, including any empty time slots before, during and after the period in which the aircraft is available to the Customer.

3. ACM Services includes the following

Aircraft, crew (incl. crew meals, allowances, accommodation, transfers), fuel, maintenance, air navigation, airport charges (at normal opening hours), ACM in-flight catering, passenger and cargo insurances and taxes.

4. ACM Services excludes the following

De-icing of aircraft, special catering requests such as caviar, special wines or spirits or special quantities of

menus. Limousine services and use of satellite phone, passenger tax of airports and/or countries as well as use of airport VIP halls and extension of airport opening hours will be invoiced separately at cost and reimbursed to ACM if not mentioned as included service on the flight confirmation.

Wi-Fi is currently available on some aircraft of the Global fleet of ACM. The aircraft have a satellite-based connectivity provided by SwiftBroadBand or a new satellite solution called Ka-Band. The booking customer is responsible for ensuring that all persons on board the aircraft who access through the different internet connection are aware of the terms and costs of the specific aircraft offered with the charter agreement and confirmation.

5. Payment

Unless other arrangements have been explicitly made with the Customer, the agreed price has to be paid in full prior to commencement of the flight at the latest. If the payment is not received within the agreed time, ACM has the right to cancel the contract with immediate effect. In this case the Customer has to pay cancellation fees as described under point 6.

Special requested services organized by ACM after conclusion of the contract (e. g. additional special VIP-Handling, extension of airport opening hours, special catering requests, insurance surcharges, on-board telecommunication via Satcom, etc.) and/or de-icing costs will be invoiced separately and have to be paid in full within ten days of receipt.

6. Cancellation

Should the Customer withdraw from the charter contract, the following cancellation fees will be charged:

with the booking

= > 5% of the total amount

13-9 days before departure

= > 15% of the total amount

8-6 days before departure

= > 20% of the total amount

5-2 days before departure

= > 40% of the total amount

Thereafter 80% of the total amount

Direct operating costs which may not arise in case of cancellation are already part of the calculation of cancellation fees.



7. Delays

If the time for which the aircraft is available to the Customer under the terms of the contract is exceeded because passengers, baggage or freight are not ready to be taken on board in due time, because travel documents or other documents required for transport are missing or because of other actions or omissions on the part of the Customer, his employees, representatives or passengers, the Customer shall owe ACM demurrage in accordance with the scale of fees of the relevant airport and the costs of additional ground and air time.

8. Fulfilment of the contract

Due to failure of the aircraft for technical or operational reasons or as a result of force majeure ACM is entitled to cancel or to revise the charter agreement.

ACM reserves the right to subcontract its contractual obligations in part or in whole to a third party or to third parties including third party operators. Should ACM cancel the charter agreement after commencement of the flight, the Customer shall owe the agreed charter price reduced in proportion to the ratio between the total number of flying hours including positioning and repositioning flight hours and the number of hours actually flown.

The Customer has the right to make changes to the booking. In terms of routings and timings, changes are subject to availability and need to be reconfirmed by ACM. ACM reserves the right to refuse a change or to charge the Customer the additional costs emerging due to the change.

9. Unserviceability of the aircraft

ACM reserves the right to at any time postpone or redirect the flight or provide the Customer with another similar aircraft at the same cost, in the event that the flight can not be performed with the booked aircraft due to weather conditions, operational restrictions, technical reasons, detention or similar measures, accidents with aircraft, or other force majeure of any nature,

In the event that the above happens before the first leg of the flight started and no suitable solution can be found, ACM reserves the right to cancel the flight order.

In the event that the above happens en-route, any costs arising from such changes or delays will be invoiced separately at cost and shall become payable by the Customer, excluding the cost of repairing the aircraft, but including the cost of arranging an alternative aircraft including any positioning flights.

ACM shall not be liable for any damages to the Customer or the passengers arising from any such delay.

10. Crew duties & Authority of the captain

Crew duty time is restricted by applicable crew duty limitation regulations. Should there be circumstances that necessitate a change in the flight schedule or routing as a result of a request by the Customer, which results in performance of the revised flight services exceeding the limits of crew duty time, the costs of any additional crew will be invoiced to Customer separately.

The captain of the aircraft is entitled to take all necessary safety precautions at any time. To that extent he has full authority to make decisions on changes to the offered payload and seating capacity in respect of safety reasons. Similarly, the captain shall make all necessary decisions as to whether and in what way the flight takes place, whether diversions are made from the planned route, and where the aircraft is landed. The captain has the right to reject passengers who were not booked in advance. Furthermore, the captain is entitled to prohibit the start of a flight or to divert a flight if unruly conduct of passengers might imply risks with respect to security regulations or affect rights of personality of crew members. In all cases, the Customer will be obliged to pay both the complete flight prices as scheduled and any additional costs caused by the diversion of a flight.

11. Travel documents

The documents for transportation are issued by ACM. The Customer is to provide ACM with all necessary information and documentation for that purpose. He is responsible for the correctness and completeness of that information and documentation. He is liable for all damages resulting from incorrectness and incompleteness of his information and documentation or from documents issued late or improperly. The Customer is responsible for ensuring that the passengers have all travel documents necessary for entry and exit, such as passports, visas, vaccination certificates etc.

12. Dangerous goods

It is not allowed to carry articles which are likely to endanger the aircraft or persons or property on board the aircraft. If the passenger is in possession of, or if his baggage includes dangerous goods according to §§ 27 Para. 4 LuftVG, 11 Para. 1,2 LuftSiG especially weapons, explosives or similar objects, he shall present them to the captain for inspection prior to commencement of carriage. The captain then decides on the mode of transportation.



13. Liability

ACM accepts no liability for the cancellation or delay of flights, provided that ACM is not directly responsible for such incidents by way of gross negligence. This exclusion of liability applies in particular to cases of force majeure, impediments caused by the authorities or other third parties, strikes, hostilities and similar circumstances. ACM shall also not be liable for the actions of third parties such as clearance companies or their agents and for passenger belongings left on the aircraft. The Customer will be liable for any damage to the aircraft or aircraft interior caused by passengers or any other personnel acting on behalf of the Customer.

14. Applicable regulations

The performance of the charter service is governed by

- the law of the Federal Republic of Germany and in particular the German Air Traffic Act
 - the Warsaw Convention for the Unification of Certain Rules Relating to International Carriage by Air of 1929, including its amendments at Hague in 1955 and Montreal in 1975
 - the law and regulations of the European Union
- Compensation and assistance to passengers in the event of denied boarding and of cancellation or long delay of flights is settled in accordance with Regulation (EC) No 261/2004 of the European Parliament.

15. Venue for legal disputes

If the Customer is a merchant or a legal person under public law exclusive place of jurisdiction shall be with the courts of Baden-Baden, Federal Republic of Germany.

II. Data protection statement

1. Information about the collection of personal data

(1) The following passages provide information about the collection of personal data in the context of any flight operation pursuant to Article 13 of the EU General Data Protection Regulation (GDPR). The term personal data refers to any data that relates to you personally, such as your name, address, email addresses, or user behaviour.

The data controller pursuant to Article 4, Paragraph 7 of the GDPR is:

ACM AIR CHARTER Luftfahrtgesellschaft mbH
Baden-Airport | Montreal Ave. D 415
77836 Rheinmünster | Germany
Phone: +49 7229 3022 0
Telefax: +49 7229 3022 11
Email: info@acm.aero

Our data protection officer, Ms. Stefanie Matz, is available at:

Phone: +49 7229 3022 199

Email: datenschutz@acm.aero

(2) If you contact us via email or via a contact form, the data provided by you (e.g. your name, birth date, sex, address, email address, phone number and payment details) and identity information (e.g. from your passport or identity card) will be saved in order to process your flight order including all additional services that has been requested by you and instructed on your behalf.

(3) The data collected in this context will either be deleted when it is no longer needed or its processing will be restricted, should the data be subject to statutory storage obligations.

2. Your rights

(1) Pursuant to Article 13, Paragraph 2, letter b of the GDPR, you have the following rights regarding your personal data:

- Right of access,
- Right of correction or erasure,
- Right of restriction of processing,
- Right to object to processing,
- Right of data portability

(2) Furthermore, you have the right to lodge a complaint with a supervisory authority on data protection regarding our processing of your personal data.

3. Legal basis for processing your data

(1) Pursuant to Article 6, Paragraph 1, letter b of the GDPR, your data is processed for the realization of precontractual measures, which are taken at your request.

(2) For the safeguarding of legitimate interest your data is processed pursuant to Article 6, Paragraph 1, letter f of the GDPR. Our interest is to fulfil your charter request in accordance with the charter contract.

4. Who receives your data

(1) Your data will be processed only by those departments in charge and responsible for the operation of your flight. The employees of ACM are obligated to commit the data secrecy and are regularly trained on the subject of data protection.

(2) In order to instruct additional services requested by you, we must pass on your data to external service providers. In this case, we only pass on data that is required to provide the respective service. As far as possible, your data will be anonymized.

(3) Data which is not explicitly necessary for order processing requires your written consent for disclosure.



(4) According to the Act on the Processing of Passenger Data (Gesetz über die Verarbeitung von Fluggastdaten zur Umsetzung der Richtlinie (EU) 2016/681), we are required to forward your data to the Passenger Data Centre. This law specifies which data must be forwarded.

5. Duration of storage of personal data

The duration of storage of personal data is determined on the basis of the relevant statutory storage periods (e.g. retention periods pursuant to commercial or tax law). Upon expiry of such period, the respective data is deleted as part of a routine process, provided that it is no longer required for fulfilling or creating any contracts, and / or that we do not have a legitimate interest in retaining the data.

valid as per July 2022